

TENTATIVE RULING FOR CIVSB2523628
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Capers v. City of Fontana, et al

Motion: Demurrer and Motion to Strike

Movant: City of Fontana (City) and Deputy Oliver (Oliver) and Deputy O'Brien (O'Brien), collectively (Defendants)

Respondent: Ma'Lenna Capers (Capers/Plaintiff)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On August 22, 2025, Plaintiff filed her Complaint against Defendants alleging causes of action for (1) Professional Negligence, (2) Violation of Civil Rights 42 U.S.C. § 1983, (3) Discrimination, and (4) Failure to Conduct Child Welfare Check. On February 25, 2026, Defendants filed the instant demurrer and motion to strike.

Defendants demur to the first, third, and fourth causes of action on the grounds they are barred by Government Code section 945.6, subdivision (a)(1), which provides a six-month statute of limitations. They also demur to the second cause of action on the grounds Plaintiff fails to state facts sufficient to constitute a cause of action. Plaintiff opposes.

ANALYSIS

A demurrer is a pleading used to test the legal sufficiency of other pleadings, i.e., it raises issues of law, not fact, regarding the form or content of the opposing party's pleading. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of a demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on a demurrer, all facts pleaded in the complaint are assumed to be true however improbable they may be. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 966-967.) The court assumes the truth of all material facts that have been properly pleaded, of facts that may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, the Court does "not accept as true contentions, deductions, or conclusions of fact or law." (*In re Ins. Installment Fee Cases* (2012) 211 Cal.App.4th 1395, 1402, citing *Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) "[T]he question of plaintiff's ability to prove these allegations, or the possible difficulty in

making such proof does not concern the reviewing court.” (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Agricultural Assn.* (1986) 42 Cal.3d 929, 936 (citations omitted).) The complaint is also to be liberally construed. (Code of Civ. Proc. §452.)

Meet and Confer

Under Code of Civil Procedure section 430.41, subdivision (a), Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. The parties should meet and confer at least five days before the responsive pleading is due. Under Code of Civil Procedure section 430.41, subdivision (a)(3), the demurring party must file a declaration stating either:

- (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.
- (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Defense counsel Kayla N. Watson filed a declaration which establishes that a meet and confer letter was sent to Plaintiff. This is an insufficient meet and confer attempt. However, considering the matter has been fully brief the court shall issue a ruling on the merits.

General Demurrer

A general demurrer challenges a complaint for failure to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e). It is granted only where the facts alleged on the fact of the complaint fail to state a valid claim under any possible legal theory entitling the plaintiff to relief against the demurring defendant. (*Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998.) The plaintiff may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 7:41 (hereafter Weil & Brown), citing *Quelimane Co. v. Stewart Tile Guaranty Co.* (1989) 19 Cal.4th 26, 38-39.)

All that is necessary as against a general demurrer is to plead facts showing that the plaintiff may be entitled to some relief. In passing upon the sufficiency of a pleading, its allegations must

be liberally construed with a view to substantial justice between the parties.” (*Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 955; *Michaelian v. State Compensation Insurance Fund* (1996) 50 Cal.App.4th 1093, 1104-1105.)

The complaint includes matters shown in attached exhibits and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on a complaint’s failure to state facts sufficient to constitute a cause of action (Code of Civ. Proc. §430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fail to state *any* valid claim entitled to the plaintiff or disclose a complete defense to relief. Even if a plaintiff is mistaken as to the nature of the case or the legal theory on which he/she could prevail, the complaint is good against a general demurrer if the essential facts allege some valid cause of action. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

First, Third, and Fourth Causes of Action

Government Code section 945.6 provides, “any suit brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division must be commenced” within six months after the rejection from the public entity is personally delivered or deposited in the mail. (Gov. Code, § 945.6, subd. (a)(1).)

The Complaint includes Exhibit H, which is the claims rejection letter issued by Defendant City of Fontana. The claims were rejected on January 14, 2025, and the letter is dated January 15, 2025. (See Compl.; Exh. H.) The Complaint, however, was not filed until August 22, 2025. Therefore, it appears untimely on its face. There are no facts alleged either that could extend the period.

Second Cause of Action

Plaintiff’s Second Cause of Action is predicated on the fourth and fourteenth amendments. Plaintiff alleges she was unlawfully seized and detained without a lawful basis. (See Compl. ¶ 33.) She also alleges there were unlawful, unwanted, and harmful statements and threats made to her by the officers that constituted battery and excessive force. (¶¶ 34-35.)

“Section 1983 states, in pertinent part: “Every *person* who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the

jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law....” (Pierce v. San Mateo County Sheriff's Dept., (2014) 232 Cal.App.4th 995, 1006, emphasis in the original.)

In *Monell v. New York City Department of Social Services* (1978) 436 U.S. 658, the U.S. Supreme Court held that to maintain a claim under Section 1983, a plaintiff must precisely identify the constitutional violation he or she is alleging against a defendant. (*Id.* at p. 694.) General allegations a defendant's conduct was negligent, grossly negligent, or an act of bad judgment falls short of what is necessary to support a due process claim under the Fourteenth Amendment. (*Berman v. City of Daly City* (1993) 21 Cal.App.4th 276, 288.)

Furthermore, as Defendants highlight, Plaintiff identifies a violation of the fourth amendment against a municipality (City of Fontana). “[T]he language of § 1983, read against the background of the same legislative history, compels the conclusion that Congress did not intend municipalities to be held liable unless action pursuant to official municipal policy of some nature caused a constitutional tort. In particular, we conclude that a municipality cannot be held liable *solely* because it employs a tortfeasor—or, in other words, a municipality cannot be held liable under § 1983 on a *respondeat superior* theory. (*Monell, supra*, at p. 691, emphasis in the original.)

In the case at hand, Plaintiff has only alleged a threadbare allegation that her fourth amendment right was violated and a conclusory allegation that it was unlawful. These are not sufficient to maintain this cause of action.

Leave to Amend

Courts are very liberal in permitting amendments, not only where a complaint is defective in form, but also where substantive defects are apparent: “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any *reasonable possibility* that plaintiff can state a good cause of action. (*Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 484 [court should grant leave to amend if in all probability plaintiff will cure defect].)

However, no abuse of discretion will be found unless a potentially effective amendment is “both apparent and consistent with the plaintiff's theory of the case.” (*Camsi IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542.) “Leave to amend *should be denied* where the facts are not in dispute and the nature of the claim is clear, but no liability exists under

substantive law.” (*Lawrence v. Bank of America* (1985) 163 Cal.App.3d 431, 436 (emphasis added); *Schonfeldt v. State of Calif.* (1998) 61 Cal.App.4th 1462, 1465 [if no liability as a matter of law, leave to amend should not be granted].)

RULING

1. Movant to give Notice.
2. Defendant’s Demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff shall file amended pleading within 20 days.
3. Motion to Strike is deemed MOOT.

TENTATIVE RULING FOR CIVDS2009499
Department S24 - Judge Carlos M. Cabrera

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Simmons, et al v. Loma Linda University Shared Services, et al

Motion: (1) Motion for New Trial

(2) Judgment Notwithstanding the Verdict

Movant: (1) Tamika Simmons (Simmons) and Merrisa Ortiz (Ortiz), (collectively Plaintiffs)

(2) Tamika Simmons

Respondent: Loma Linda University Shared Services (Shared Services/Defendant)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On May 29, 2020, Tamika Simmons, Precious Cisneros, and Merrisa Ortiz filed a wage-and-hour complaint against Defendant. Plaintiffs allege, among other things, that Defendant maintained a rounding policy under which non-exempt hourly employees' shift-start and shift-end punches were rounded to the nearest tenth of an hour instead of being paid based on their actual recorded punch times. The operative post-trial dispute concerns the certified rounding claim and derivative waiting-time claim.

Defendant timely moved in limine for a ruling on the controlling legal standard for the rounding claim. Defendant urged the Court to apply *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, under which a neutral rounding policy may be lawful if it does not undercompensate employees over time. Plaintiffs urged the Court to apply *Camp v. Home Depot U.S.A., Inc.* (2022) 84 Cal.App.5th 638 (*Camp*), review granted February 1, 2023, S277518, and *Woodworth v. Loma Linda University Medical Center* (2023) 93 Cal.App.5th 1038 (*Woodworth*), review granted November 1, 2023, S281717. On December 1, 2025, the Court heard all motions in limine arguments and adopted the Camp/Woodworth framework as the governing standard for the rounding claim at trial. (RT 12/1/25, 94:3-17.)

Trial eventually commenced on January 26, 2026. The rounding claim was submitted to the jury by special verdict. The first question asked: "Did Loma Linda University Shared Services' timekeeping system capture the exact amount of time worked by Merrisa Ortiz and members of the Rounding Class during the class period of May 29, 2016, to December 29, 2018?" The jury answered "No." Under the verdict form, that answer ended the rounding claim and directed the

jury to proceed to Ms. Simmons's individual meal-period claim. The jury ultimately returned a defense verdict. Judgment was entered in favor of Defendant on March 26, 2026, and Defendant served notice of entry of judgment on April 9, 2026.

Simmons and Ortiz move for new trial. Although Simmons is included in the notice, the motion seeks a new trial on the certified rounding claim and derivative waiting-time subclass, relief directed to Ortiz, the Rounding Class, and the Derivative Waiting Time Subclass. Separately, Plaintiffs move for partial JNOV, but that motion seeks relief only on Simmons's individual meal-period claim and derivative waiting-time penalty claim. Defendant opposes.

ANALYSIS

Motion for New Trial

A motion for a new trial asks the court to reexamine one or more issues of fact or law after a trial and decision. (Code Civ. Proc., §§ 656, 657.) The grounds for a new trial are:

- (1) Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial;
- (2) Misconduct of the jury;
- (3) Accident or surprise, which ordinary prudence could not have guarded against;
- (4) Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at trial;
- (5) Excessive or inadequate damages;
- (6) Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against the law; and
- (7) Error in law, occurring at the trial and excepted to by the party making the application.

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision. (Code Civ. Proc., § 657.)

The procedural steps prescribed by law for making and determining new trial motions are mandatory and must be strictly followed. (*Mercer v. Perez* (1968) 68 Cal.2d 104, 118; *Pacific Trends Lamp & Lighting Products, Inc. v. J. White, Inc.* (1998) 65 Cal.App.4th 1131, 1135.) A party intending to move for a new trial shall file and serve a notice of intent to move for a new trial, designating the ground upon moving, and whether the same will be made upon affidavits, the minutes of the court, or both. (Code Civ. Proc., § 659, subd. (a).) Said notice shall be filed and

served (i) after the decision is rendered and before the entry of judgment, or (ii) within 15 days after the mailing of the notice of entry of judgment or 180 days after entry of the judgment, whichever is earlier. (Code Civ. Proc., § 659, subd. (a).) These jurisdictional times are not extended by Code of Civil Procedure section 1013, stipulation, or order. (Code Civ. Proc., § 659, subd. (a); *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468.) The motion is not determined until an order ruling on the motion is entered in the permanent minutes of the court or signed by the judge and filed with the clerk. (Code Civ. Proc., § 660, subd. (c).)

Plaintiffs move for a new trial on the certified rounding claim and derivative waiting-time claim under Code of Civil Procedure section 657, subdivisions (1), (6), and (7). The motion is based on three grounds: (1) insufficiency of the evidence to support the jury's finding that Defendant's timekeeping system did not capture the exact amount of time worked; (2) the verdict is against law; and (3) attorney misconduct during closing argument. For the reasons set forth below, the motion should be denied.

Insufficiency of the evidence to justify the verdict

On a motion under Code of Civil Procedure section 657, subdivision (6), the Court may weigh the evidence, but a new trial may not be granted unless, after weighing the evidence and reasonable inferences from the entire record, the Court is convinced the jury clearly should have reached a different verdict. (Code Civ. Proc., § 657, subd. (6).) Thus, it is not enough that the evidence could support a different result; the question is whether the jury clearly should have reached that result.

The certified rounding claim was submitted to the jury under the *Camp/Woodworth* framework. The first special-verdict question asked whether Defendant's timekeeping system captured the exact amount of time worked by Merrisa Ortiz and members of the Rounding Class during the class period. The jury answered "No," which ended the rounding claim under the verdict form.

Plaintiffs contend the jury's finding is unsupported because the evidence showed Defendant's electronic timekeeping system recorded employees' actual punch-in and punch-out times to the minute and then rounded those punches to the nearest tenth of an hour for payroll purposes. Plaintiffs argue that, under *Camp/Woodworth*, the capture of actual punch times necessarily means the employer captured the exact amount of time worked.

The issue presented with this motion is not whether Plaintiffs presented evidence that could support a plaintiff verdict. The issue is whether the evidence supports the jury's actual finding and it does. Defendant presented evidence from which the jury could reasonably distinguish exact punch time from exact "time worked." Specifically, Defendant presented testimony that employees would wait at the clock, badge reader, or computer until the next rounding period before clocking out, and that employees leaving their shift would stand around and wait for the time to "click over" so they would get their full hour clock-in. (TT 1/28/26, 84:7-19, 85:23-86:9, 126:3-20.) The jury also had Simmons's testimony that it took about five minutes to complete the sign-ins needed before taking calls and that she had to sign back into the computer, IVR, and API after lunch before she was ready to take calls. (TT 2/2/26, 25:11-24, 30:14-31:1.) The evidence permitted the jury to find that the system captured recorded punches but did not necessarily capture the exact amount of time actually worked.

Plaintiffs argue this evidence should be treated as legally irrelevant under *Camp/Woodworth* because the rounding claim concerns the employer's substitution of rounded punch time for actual punch time. But *Camp* does not require that result on this record. *Camp* is under review and is persuasive, not binding. Further, the first special-verdict question used the phrase "time worked," not "time punched" or "recorded punch time." The jury was entitled to consider evidence on whether recorded punch time was identical to actual time worked. Although Plaintiffs maintain that Defendant's evidence goes only to damages, offset, or manipulation of the rounding policy, the evidence still provides a basis to conclude the jury was not required to accept Plaintiffs' view that exact punch time necessarily equaled exact time worked.

Nor does *Woodworth* compel a different result at this stage. *Woodworth* does support Plaintiffs' legal theory, but the jury was presented with evidence directed to whether the timekeeping system captured exact work time as opposed to exact punch time. Given the wording of the verdict form and the evidence presented, the record supports a reasonable inference in Defendant's favor. Accordingly, the record does not support a finding that the jury clearly should have answered the first special-verdict question "Yes."

Error in law

Code of Civil Procedure section 657, subdivision (7), separately permits a new trial for an error in law occurring at trial and excepted to by the moving party. In the case at hand, Plaintiffs' error-in-law theory overlaps with their against-law theory because both turn on the same premise:

Defendant's distinction between exact punch time and exact time worked was legally unavailable under *Camp/Woodworth*. Plaintiffs separately argue the verdict is against law because Defendant's distinction between "time worked" and "time punched" is contrary to *Camp/Woodworth*. Plaintiffs argue that as a matter of law, an electronic system that captures exact punch times captures exact time worked for purposes of a rounding claim. If that premise is accepted, the verdict would be legally defective.

In the case at hand, the jury was instructed under the *Camp/Woodworth* framework and was asked whether Defendant's system captured the exact amount of time worked. Importantly, Plaintiffs did not request a clarifying instruction defining "time worked" as the time between recorded clock-in and clock-out punches, and the special-verdict form likewise did not define the phrase that way. Defendant's theory was that exact punch times did not necessarily equal exact work time. For the reasons discussed above, that theory had evidentiary support in the record and was not foreclosed as a matter of law by the authorities on which Plaintiffs rely. The verdict therefore is not against law.

Irregularity in the proceedings by which either party was prevented from having a fair trial

Plaintiffs' misconduct argument is based on Code of Civil Procedure section 657, subdivision (1). To obtain relief on this ground, Plaintiffs must show an irregularity in the proceedings or misconduct that materially affected their substantial rights and prevented a fair trial. As used in section 657, the term "irregularity in proceedings" refers to "an overt act of the trial court, jury, or adverse party, violative of the right to a fair and impartial trial, amounting to misconduct." (*Gray v. Robinson* (1939) 33 Cal.App.2d 177, 182.)

The challenged argument does not meet that standard. Defendant's counsel argued that the jury should answer "No" to the first special-verdict question because employees sometimes waited near time clocks or badge readers for the next rounding interval. That argument was based on testimony admitted at trial and on the wording of the special verdict, which asked whether the system captured exact "time worked."

Plaintiffs also did not preserve the misconduct claim. Since the alleged misconduct was a discrete legal/evidentiary argument, an objection and admonition could have addressed it. A claim of attorney misconduct generally is forfeited absent a timely objection and request for admonition, unless the misconduct was too serious to be cured. (*Jensen v. BMW of North America, Inc.* (1995)

35 Cal.App.4th 112, 129, disapproved on other grounds in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189.)

Lastly, Plaintiffs' allegation of misconduct depends on the premise that Defendant's "time worked" theory was legally prohibited. Because that premise is not established, the closing argument does not amount to an irregularity in the proceedings or misconduct warranting a new trial.

Judgment Notwithstanding the Verdict (JNOV)

"The court, before the expiration of the power to rule on a motion for new trial ... shall render judgment in favor of the aggrieved party notwithstanding the verdict whenever a motion for a directed verdict for the aggrieved party should have been granted had a previous motion been made." (Code Civ. Proc., § 629, subd. (a).) A JNOV may be granted if the evidence appears, viewed in the light most favorable to the prevailing party, that there is no substantial evidence¹ to support the verdict, but should be denied if there is any substantial evidence or reasonable inferences to be drawn from the evidence, in support of the verdict. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.) Additionally, a JNOV may be granted to some issues or causes of action. (*Dell'Oca v. Bank of New York Trust Co., N.A.* (2008) 159 Cal.App.4th 531, 553.)

The Court does not reweigh the evidence or judge the credibility of the witnesses. (*Hansen v. Sunnyside Products, Inc.* (1997) 55 Cal.App.4th 1497, 1510.) However, it can consider inconsistent testimonies in determining if sufficient evidence exists to support the verdict. (*Burch v. CertainTeed, supra*, 34 Cal.App.5th at p. 348.) The Court further can rely on erroneously submitted evidence in determining if substantial evidence was presented. (*Donahue v. Ziv Television Programs, Inc.* (1966) 245 Cal.App.2d 593, 609-10.) Yet all evidentiary conflicts and reasonable inferences are resolved to support the judgment. (*Burch v. CertainTeed, supra*, 34 Cal.App.5th at p. 348.)

Plaintiffs move for partial judgment notwithstanding the verdict on Simmons's individual meal-period claim and derivative waiting-time penalty claim. Plaintiffs argue the verdict cannot stand because Simmons's time records showed 118 missed, short, or late meal periods, which triggered the rebuttable presumption recognized in *Donohue v. AMN Services, LLC* (2021) 11 Cal.5th 58 (*Donohue*). Plaintiffs contend Defendant failed to rebut the presumption because it did

¹Substantial evidence is that of a ponderable legal significance, reasonable, credible, and of solid value. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.)

not present evidence that Simmons was compensated for those meal periods or that she voluntarily chose to take noncompliant meal periods.

The argument does not satisfy the JNOV standard. *Donohue* recognizes a rebuttable presumption where time records show noncompliant meal periods. (*Donohue, supra*, 11 Cal.5th at pp. 76-77.) However, *Donohue* does not eliminate the substantial-evidence standard after a jury verdict. On JNOV, the question remains whether the evidence, viewed in the light most favorable to the verdict, contains substantial evidence to support the jury's determination. (*Burch v. CertainTeed, supra*, 34 Cal.App.5th at p. 348.)

In the case at hand, the jury expressly found that Defendant proved, for each of the 118 workdays, that it provided Simmons a reasonable opportunity to take uninterrupted 30-minute meal breaks on time, did not impede or discourage her from taking those breaks, relieved her of all duties, and relinquished control over her activities during the breaks. (Notice of Entry of Judgment, Ex. A, Judgment Upon Jury Verdict, pp. 4-5.) Those findings correspond to the employer's obligation to provide, but not police, meal periods. (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1040.)

Substantial evidence supports those findings. Defendant presented evidence that Access Center employees were trained on the meal-and-rest policies, that employees were told they were entitled to 30-minute meal periods and should have the opportunity to take meal periods before the fifth hour, and that employees were trained on how to request meal-period premium pay. (TT 2/4/26, 127:19-130:3.) Defendant also presented evidence that employees had flexibility in taking meal periods, that employees were not instructed to return early from lunch, and that employees could choose to take shorter meal periods. (TT 2/4/26, 130:16-132:18, 135:10-21.) Defendant further relied on evidence that Simmons did not report that she was denied a compliant meal period or request premium pay. (TT 2/4/26, 134:1-21.) Defendant also relied on Simmons's pay-period attestations and the jury's ability to assess her contrary testimony regarding the buddy system and workplace pressures. (TT 2/2/26, 27:13-31:1, 73:21-74:24.) The jury could reasonably infer from Defendant's evidence that Simmons was provided compliant meal periods and that any noncompliant entries reflected employee choice rather than employer noncompliance.

Finally, Defendant's theory was not limited to Friday early-outs. The waiver and attestations were part of the broader evidentiary record from which the jury could draw reasonable inferences regarding Simmons's knowledge and Defendant's reporting process. The evidence need

not be conclusive to defeat JNOV. As a JNOV is not warranted on Simmons's underlying meal-period claim, there is no unpaid meal-period premium on which to base derivative waiting-time penalties.

RULING

1. Plaintiffs Motion for New Trial is DENIED.
2. Plaintiffs Motion for Judgment Notwithstanding the Verdict is DENIED.
3. Movant to give Notice.